SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (Crl.) No. 532 of 1992 (YEAR: 1997)

CORAM: KULDIP SINGH, A.S. ANAND

D.K. Basu
... Appellant(s) / Petitioner(s)
Versus
State of West Bengal
... Respondent(s)

Acts Referred:	Constitution of India, Code of Criminal Procedure, 1973
Sections:	Article 21, Article 22, Section 50 CrPC, Section 54 CrPC

JUDICIAL HEADNOTE & SUMMARY

Laid down mandatory guidelines for law enforcement during arrest and interrogation to eliminate custodial deaths and uphold constitutional guarantees under Articles 21 and 22.

RATIO DECIDENDI

The Court held that: Laid down mandatory guidelines for law enforcement during arrest and interrogation to eliminate custodial deaths and uphold constitutional guarantees under Articles 21 and 22. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in D.K. Basu v. State of West Bengal (W.P. (Crl.) No. 532 of 1992) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, Code of Criminal Procedure, 1973, particularly Article 21, Article 22, Section 50 CrPC, Section 54 CrPC. Laid down mandatory guidelines for law enforcement during arrest and interrogation to eliminate custodial deaths and uphold constitutional guarantees under Articles 21 and 22.

OPERATIVE ORDER

ORDER: Decided